

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

ICA No. 12 of 2015

Imtiaz Ahmed

vs

Punjab Small Industries Corporation & others

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
	12.03.2019	Sh. Munir Ahmad, Advocate for appellant. Mr. Ijaz Ahmad Awan, Advocate for TEVTA. Mr. Jari Ullah Khan, Advocate for respondent No.1.

Through this Intra Court Appeal filed under Section 3 of the Law Reforms Ordinance, 1972, the appellant has called in question the judgment dated 18.11.2014 passed by learned Single Judge in Chambers, whereby the constitutional petition, filed by the appellant, was dismissed.

2. Brief facts of the case are that the appellant was appointed in the Punjab Small Industries Corporation (“PSIC”) and was on deputation with Technical Education and Vocational Training Authority (“TEVTA”) and claims that he has been denied Secretariat Allowance (“SA”) at the rate of 20% of his basic pay which had been granted to other employees of the PSIC. In this regard, TEVTA wrote a letter to the Finance Department, however, the said department vide its letter dated 01.06.2010 stated that SA is only applicable to the employees of Civil Secretariat and not to the employees of TEVTA. Feeling aggrieved of the said inaction by the respondents, the petitioner filed a constitutional petition (WP No.23444 of 2010) which

was dismissed vide judgment dated 18.11.2014 passed by learned Single Judge in Chambers. Feeling aggrieved of the said judgment, instant appeal has been preferred.

3. Learned counsel for the appellant has contended that the impugned judgment has been passed without appreciating the material available on record; that denying of said allowance to the appellant, who is employee of PSIC, amounts to discrimination.

4. Learned counsel appearing on behalf of respondent TEVTA contends that Government of Punjab promulgated the Punjab Technical and Vocational Training Ordinance on 05.06.1999 to provide for the establishment of TEVTA which has since been replaced by TEVTA Act, 2010; that Chief Secretary, Punjab vide notification dated 05.07.1999 transferred the administrative control, assets and liabilities of various PSIC centers/projects to TEVTA; therefore, the appellant no longer remained PSIC employee, hence, cannot claim discrimination. Besides, the appellant does not work in the Civil Secretariat, therefore, is not entitled to the said relief.

5. Learned counsel for respondent No.1 has argued that PSIC employees transferred to TEVTA have now been absorbed by TEVTA vide notification dated 22.10.2014 issued by the Chairman, TEVTA, therefore, no relief can be granted to the appellant.

6. **Heard.** Record perused.

7. Essentially the grievance of the appellant is addressed in the notification dated 14.07.2009 issued by the Government of Punjab, Finance Department wherein it has been mentioned that SA at the rate of 20% of basic pay has been granted only to the employees of Punjab Civil Secretariat (BS-01 to BS-22), however, under

clause 2(i) of the said notification, the SA will not be admissible to the officers/officials of Punjab Civil Secretariat Departments on deputation or posted by transfer outside the Secretariat including attached departments, field formations and autonomous bodies. As the appellant is not employed in the Civil Secretariat, therefore, he is not entitled to said allowance. Besides, the appellant was transferred on deputation to TEVTA and now admittedly he has been absorbed by TEVTA and no longer remained employee of the PSIC, therefore, he cannot claim to be discriminated against on the ground that PSIC has recommended for issuance of 20% SA to their employees. Moreover, an effort was made by TEVTA by making representation to the Secretary Finance, Government of Punjab, Lahore vide its letter dated 01.06.2010 requesting for sanction of SA for PSIC employees but the said request has been turned down by the Finance Department vide its letter dated 06.07.2010 on the ground that SA is permissible to the employees of Civil Secretariat only. Consequently, there is no ground to interfere in the impugned order passed by learned Single Judge in Chambers.

8. For what has been discussed above, this appeal being devoid of any force is *dismissed*.

(Muhammad Sajid Mehmood Sethi) (Muzamil Akhtar Shabir)
Judge Judge